



Ref. No. 3FI/HR/Appt/IN-239

Date: 24th July 2024

Dear Sagar Kumar,

With reference to our discussions, on exploring possibility of a suitable career opportunity for you in our organization, followed by our offer and your acceptance of the same we are pleased to appoint you with 3FITECH on the following terms and conditions as mutually agreed:

Terms and Conditions:

1. Designation: SEO Executive

2. Date of Joining:

Your date of joining will be **16th July 2024.**

3. Compensation:

Your annual cost to company (CTC) will be **Rs. 96,000/-**. Illustrative details of your compensation are provided in the enclosed Annexure.

Compensation is a strictly confidential matter and should not be discussed with anyone, knowing or unknowingly. Since failure to observe confidentiality may attract disciplinary action.

The details of salary, as per your entitlement are given in the annexure to this letter. All components of your salary are subject to change as per Company policy. Salary reviews and such other valid reasons, as recognized in law or as the Company may determine from time to time, without any prior intimation to you.

4. Reporting for Work:

You will report to the designated Manager for all functional and administrative purposes.

5. Place of Work:

- Your normal place of work will be A-1613,16th Floor,T-3, NX-One, NOIDA 201308. However, you may be required to travel in connection with work, both within and outside India, as frequently as the work may demand.
- During the employment with the Company, your services are transferable to any place in India or abroad or to any associate or client premises or a subsidiary, whether existing or acquired later, at the sole discretion of the management. You shall however have no right to demand such travel or transfer, for any reason whatsoever.

Provided that if you are deputed to any Associate/ Subsidiary/ Group company outside India or at any client location by the Company, it shall be treated as you having bound to serve the company for the deputation period, and for the stipulated period thereafter, if any, and the same shall be treated as the contract period vis-à-vis this contract of service.

7. Employment:

You will be a confirmed employee of 3FITECH from the date of your joining.

8. Full Time Employment:

You shall, during your employment with the company, devote whole time and attention to the company's business entrusted to you and you shall not engage yourself directly or indirectly in any business or service, other than company's business and service, without prior written permission of the company.

9. Confidentiality and Secrecy:

Confidential Information means and includes ideas, media, techniques, sketches, drawings, works of authorship, models, inventions, processes, apparatuses, equipment, algorithms, software programs, software source documents, and formulae related to the current, future, and proposed products and services of the Company, and including, without limitation, Company's information concerning research, experimental work,

development, design details and specifications , engineering , financial information , procurement requirements , purchasing ,manufacturing, customer lists, vendor lists, candidate lists, customer requirements, investors, employees, business and contractual relationships, business forecasts, sales and merchandising, marketing plans and other business related information accessible to you during your employment with the Company.

- You shall not disclose any information to the client or to the end client about your discussion with 3FITECH. You shall be in touch only with 3FITECH's HR for anything to be sorted out. Any communication between you and 3FITECH if found, shared with others will result in strict action against you and could lead to **"Breach of Contract"**.
- You shall not divulge, communicate or pass on any information in any form, related to any aspect of the company, either directly or indirectly, to anyone outside the company or even to those inside the company who are normally not authorized for or privy to such information.
- You acknowledge that the Company owns trade secrets and confidential information that are very important to the success of company's business. In addition, the Company has confidential information belonging to other person - whether individuals, firms, corporations or other entities, that the Company is obliged to keep confidential.
- You agree that all Confidential Information is the exclusive property of the Company and you will take all necessary steps to protect the confidential information. You agree that during your employment and after your employment ends, whatever the reason of such termination, you will not use, reproduce or disclose any of the confidential information, except in the normal course of your job for the Company under permission from your Manager. You shall return any confidential information including all copies in your possession upon request of the Company failing which it will automatically attract criminal breach proceedings under the prevailing law of the land apart from normal disciplinary proceedings.
- Your individual remuneration is purely a matter between yourself and the Company and has been arrived at on the basis of your specific background and professional merit. We expect you to maintain this information and any future changes in it, in strict and complete confidentiality. Any deviation on this will attract disciplinary action in force at the time of the event and could also lead to termination of service on disciplinary grounds.

15. Protection of Intellectual Property Rights:

All works such as development, modifications, improvisations in the form of programs, policies, studies, reports, manuals, products etc carried out for the company with your involvement shall be the property of the company.

Copyrights or intellectual property rights of any other kind, for all such works including those that are generated and created during the course of doing such work, shall remain with the company and you will not have any claims on the same.

- **Ownership:** The Laptop, accessories, software and operating system issued to you shall remain the property of 3FITECH and are provided on a loan basis. These items can and may be recalled at any time.
- **Responsibilities:** The employee shall adhere to the following:
 - Additional software should not be installed nor hardware modifications made without authorization from the 3FITECH.
 - The Laptop should be used for official purpose only.
 - Protect damaging of computers, computer systems or computer networks.
 - Shall not violate Copyright laws.
 - Shall not use other people's log-in details or trespass in other's folders, work or files.
 - Shall not allow any other person to use the laptop other than 3FITECH authorized person.
 - Shall not disclose, copy, or share data except unless you get written communication from your supervisor.
 - If there is any loss/damage to the laptop, 3FITECH must be immediately informed.
 - The employee shall be responsible for the cost of repair/replacement of the laptop, in the event of a breach of any condition of this Agreement.
 - The employee shall ensure the protection of the business, goodwill, confidential, it's trade secret and/or other proprietary information of the 3FITECH.
 - The Employee shall return to the Company by close of business no later than her/his Separation Date any and all Company property in her/his possession, including but not limited to Company cell phone, PDA, keys, building passes, credit cards, documents, files, and software, and all written information pertaining to 3FITECH's business. The Employee represents and warrants that of any nature, she/he will not retain any property of 3FITECH.
- **Monitoring:** 3FITECH reserves the right to monitor all usage carried out by employee to ensure proper working and, appropriate use by employees, the security of data, and to retrieve the contents of any employee communication in

these systems. Management may access user files, including archived material of present and former employees without the user's consent for any purpose related to maintaining the integrity of the network, or the rights of 3FITECH or other users or for any other reasonable purpose.

- **Archiving and Backup of Data:** Employees are responsible for keeping up-to-date backup copies of their documents and data contained on the laptop.
- **Non-Disparagement:** The Employee agrees not to engage in any form of conduct, nor make any statements or representations, that disparage or otherwise impair the reputation, goodwill or interests of the Company, its agents, officers, directors or employees.
- **Confidential Information:** The Employee acknowledges that she/he has had access to confidential and proprietary information. The Employee acknowledges and agrees that she/he will not, at any time without the prior written authorization of 3FITECH, share/divulge any information relating to 3FITECH, which may have come to her/his knowledge during his employment. This clause shall continue to be applicable even after termination of this Agreement.

All data shall be the sole & exclusive property of 3FITECH. Since data security and integrity along with resource protection is critical to the operation of the organization, employees that violate the terms of this agreement may be subject to disciplinary action up to and including dismissal besides criminal prosecution. Any employee aware of any violation of this policy is required to report it to their supervisor or other authorized representative.

16. Professional Ethics:

You shall not conduct yourself in any manner amounting to breach of confidence reposed in you or inconsistent with the company's code of conduct and position of responsibility occupied by you. You will be expected to deal with company's money, material, documents and any other property with utmost honesty and professional ethics.

17. Retirement / Termination Clause:

Either party may terminate this agreement by giving two months' notice, in writing without assigning any reason. The company reserves the right to pay or recover from you the amount of two month's gross salary in lieu of the notice period. However, if the resignation is initiated by you, the client's decision about your release date from the project will be treated as your last working day. The company may at its sole discretion, relieve you from such date as it may deem fit even before expiration of the

notice period, without incurring any liability to pay you compensation for the unexpired period of the notice period.

In case if your project assignment OR contract with the Client is completed, Company will market your profile for other project assignments. You acknowledge that the Company is relieved from running any payroll, salary or compensation for the duration, your services are not billable with the Client.

Further please note that in case you wish to terminate this agreement, in addition to the notice stipulated herein above, you will also be required to bear & reimburse full cost of the expenses incurred by the company on your training and development including overseas travel cost for onsite opportunity provided to you by the company as per the Professional Services Agreement signed by you with the company (if any).

You will automatically retire in the normal course, from the services of the company on attaining the age of superannuation, on the day following your 60th birthday.

At the time of leaving you will ensure that all your on-going activities including all projects are successfully completed, to the satisfaction of your manager. You must also ensure that you have handed over all company property issued to you (if any) including your identity card, Access card etc is handed over to the Manager (Administration). Your final dues settlement with the company will be subject to a 'No-Dues' certificate and a 'satisfactory-completion and-handing-over-project' certificate from your manager.

18. Abandonment:

- Absence from work for a continuous period of eight days, including absence upon leave though applied, but not granted or overstay for a period of eight days after expiry of sanctioned leave, without written permission, shall make you lose your job and your services shall automatically cease without any notice or intimation.
- In the event of breach of any of the terms and conditions of this appointment letter, the company shall be entitled to initiate appropriate legal action against you at your cost and risk and you shall be liable to pay liquidated damages to be quantified by the company at the relevant point of time having regard to the exigencies of work of the company.

19. Non-solicitation and non-compete:

- **Staff:** You agree that during your employment and for a period of 1 years after your employment with the company ends, whatever the reason of such termination, you will not, directly or indirectly, aid, solicit or induce any employees, contractors, directors or officers of the company to leave the company for employment or other relationship with any entity that is involved in any aspect of the business of the company.
- **Customer/Prospects:** You agree that during your employment and for a period of 1 years after your employment with the company ends, whatever the reason of such termination, you will not, directly or indirectly:
 - Solicit any customer, clients, prospect, partner, and vendor of the company.
 - Join any customer, clients, prospect, partner, or vendor as an employee, consultant, advisor, or contractor.
 - Induce any customer, clients, prospect, partner, and vendor to stop working with the company. iv. Compete with Company for any business with Company's customer, clients, partner, and vendor.

20. Company Policies:

- You agree and accept that as part of your job responsibilities, you will follow the guidelines, standards, rules, policies and practices of the company prevailing from time to time. You agree that the Company may change any of the company's guidelines, standards, rules, policies and practices from time to time, and that such change will apply to your job responsibilities and be binding on you after the effective date of the change.

Such changes may affect or result in a modification of the terms and conditions governing your employment which are set out in this or elsewhere, and you shall be bound by such changes as long as they are permitted by law. For the avoidance of doubt, nothing in this agreement shall affect or be construed to prejudice or override any of the Company's obligations imposed by law, and the terms of this Appointment Letter shall be read subject to such legal obligations, and where there is any inconsistency between the terms and such legal obligations, the terms of this Appointment Letter shall be deemed to be modified to the extent of such inconsistency.

- You must achieve designated target to claim your compensation, if failed company reserve rights to forbid partial or full compensation.

This clause is performance based, if an employee found performing even without achieving targets, management reserve rights to overlook and take action in employee's favor.

- You warrant that you are under no contractual duty or obligation arising from any other contracts you may have entered into which restrains you for whatever reason from being employed by or working for the company and you agree to indemnify the company against any loss or damage that the company may suffer arising out of your breach of the foregoing warranty or out of any other contractual obligations you may have that are inconsistent with or in conflict with your duties and obligations under this Appointment Letter.
- Kindly note that any action on your part contrary to any of the above-mentioned clauses shall render you liable to termination with immediate effect without notice or payment of amount in lieu of notice period.

However, if at the time of conducting violation/ breach of contract or at the time of identification of any violation or breach of the terms and conditions, in case you are governed by any Services Agreement with the company, you will as well be liable to pay penalty as per the agreed terms of this and other Agreements signed with the company (if any).

- The company shall also be within its rights to initiate appropriate legal action against you apart from recovery of amount as per this appointment letter and/ or Professional Services Agreement (if any) signed with the company at your cost and risk and you shall be liable to pay liquidated damages to be quantified by the company at the relevant point of time having regard to the exigencies of work of the company
- appointment is based on the information provided by you in your resume. If any information given by you to the company proves to be false or if you are found to have suppressed or concealed any material information, in such an event, your services will be liable for termination with immediate effect Your as above.
- Your employment in the services of the company shall always be subject to your being found and remaining mentally and physically fit.

Please sign and return a copy of this appointment letter, along with the attached annexure, as a record of your having read and accepted the terms of this offer and appointment.

We welcome you to the pursuit of excellence at 3FITECH and are proud to have you as a member of our dream team and expect that you will enable us in achieving our mission and targets with high standards of productivity.

With best wishes,

For **3FITECH COMMUNICATIONS PVT. LTD.**

Trishita

HR Manager

Name: Sagar Kumar

W.E.F. 24th July 2024

Designation: SEO Executive

Salary Detail	Monthly Salary (in INR)	Annual Salary (in INR)
Basic	3200	38400
HRA	1600	19200
Special Allowances	350	4200
Conveyance Allowance	1600	19200
Medical Allowance	1250	15000
Fixed	8000	96000

Note 1: The employee's contribution of Provident Fund would be deducted from the Gross Salary.

Note 2: Taxes would be applicable on the Gross Salary as per the investment declaration made by the employee during the financial year.

Note 3: Professional Tax would be applicable as per State Government Norms.